



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

August 9, 2022

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 202101013 regarding Police Officer Jeffrey Santos, Tax No. 957133 (DADS No. 2022-26453) and Detective JohnPaul Catano, Tax No. 945159 (DADS No. 2022-26452)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that Detective Catano's entry into the apartment did not constitute misconduct, and therefore he will receive no disciplinary action for this allegation. However, both officers in this case should have utilized either a certified Department interpreter or the Language Line Service to assist the Limited English Proficient (LEP) person in this matter at some point before finalizing the assignment. However, because the officers made a good faith effort to uncover the facts of the matter being investigated, utilizing an available family member to translate for the LEP person during the preliminary phase of their investigation, formalized training, the mitigated penalty under the Disciplinary System Penalty Guidelines, is warranted here.

It bears noting that in this case the officers entered an apartment while performing their required preliminary investigation of an emergency call for assistance. Under

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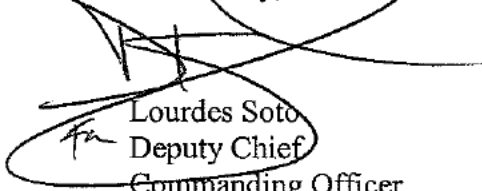
Website: <http://nyc.gov/nypd>

circumstances, as here, where officers are responding to emergency calls for assistance, the application of New York City Administrative Code 14-173 is misplaced, as it is designed to ensure that consent for a search is validly obtained. As the officers in this matter entered the apartment to interview the emergency caller and investigate the situation, requiring them to apply Administrative Code 14-173, where no search is being conducted, would be untenable.

Therefore, based on the foregoing, Police Officer Santos and Detective Catano will receive formalized training in Patrol Guide Procedure 212-90 (Guidelines for Interaction with Limited English Proficient [LEP] Persons). Additionally, Detective Catano will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Improper Entry).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


Lourdes Soto
Deputy Chief

Commanding Officer
Police Commissioner's Office